Schedule of Amendments (Option Z clauses)

Riverside Community Centre (fictional demonstration project)

Z1 Order of precedence

If there is any conflict between the documents, these Z clauses take precedence over all other documents, and the Scope takes precedence over the Contractor's tender.

Z2 Liability

The Contractor's total liability to the Employer shall not be limited, save that liability for indirect or consequential loss is excluded.

Z3 Ground conditions

The Contractor is deemed to have inspected the Site and satisfied itself as to the ground conditions, including any obstructions, contamination and groundwater.

No compensation event arises from physical conditions within the Site, whether or not an experienced contractor would have allowed for them.

Z4 Payment

The Employer pays within 45 days of the assessment date. Retention is 5% of the Price for Work Done to Date, half of which is released at Completion.

Z5 Notification

A compensation event not notified by the Contractor within 4 weeks of becoming aware of it is time-barred.

Z6 Delay damages

Delay damages are GBP 15,000 per week. The total of delay damages is not capped.

Z7 Termination

The Employer may terminate the Contractor's obligation to Provide the Works at any time for its convenience. The Contractor is not entitled to loss of profit on work not carried out.

Z8 Price

The Prices are fixed for the duration of the contract and are not subject to adjustment for inflation.

Z9 Security

The Contractor provides a performance bond of 10% of the total of the Prices and a parent company guarantee.